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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CONTRACTORS PLUS ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

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A. PROPERTY OF OTHERS IN THE CARE, CUSTODY OR CONTROL OF THE INSURED

1. Subject to the provisions of Section **I** - Coverage **A** - Bodily Injury And Property Damage Liability, we will pay for "loss" to property belonging to others, including all resulting loss of use of the property, while that property is in the care, custody or control of, or over which physical control is being exercised for any purpose by, the insured and such "loss" arises out of your business operations to which this policy applies.
2. Additional Exclusions
   The following is added to paragraph **2.** Exclusions, of Section **I** - Coverage **A.** Bodily Injury and Property Damage Liability:
   This insurance does not apply to "loss" to property:
   (1) held by the insured for sale or entrusted to the insured for storage or safekeeping;
   (2) owned or occupied by, rented or leased to, or loaned to any insured;
   (3) included in the "products - completed operations hazard"; or
   (4) arising from errors or mistakes in design plans or specifications committed by or on behalf of the insured.
3. Limits of Insurance
   a. The most we will pay for "loss", including all resulting loss of use of that property is:
      (1) $2,500 as a result of any one "occurrence" and the most we will pay for the sum of all occurrences during the policy period is the aggregate limit of $10,000: or
      (2) The amount shown in the Declarations, if greater than **(1)** above, for Voluntary Property Damage And/Or Property Of Others In The Care, Custody, And Control Of The Insured.
   b. The Limits of Insurance of this endorsement apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.
4. Deductible
   a. We are not obligated to pay any "loss" until such "loss" exceeds a $250 deductible. We will then pay the amount of "loss" in excess of the deductible up to the applicable Limit of Insurance. This deductible amount applies to all "loss" to property belonging to others as the result of any one "occurrence".
   b. We may pay any part or the entire deductible amount to effect settlement of any claim or "suit" and, upon notification of the action taken; you shall promptly reimburse us for such part of the deductible amount as has been paid by us.
   c. The terms of this insurance, including those with respect to:
      (1) our right and duty to defend any "suits" seeking those damages: and
      (2) your duties in the event of an "occurrence", claim or suit:
      apply irrespective of the application of the deductible amounts.
5. Excess Insurance
   This insurance is excess over any other collectible insurance available to the insured.

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6. Additional Definition
The following is added to Section **V** - Definitions:
a. "Loss" means unintentional damage or destruction, but does not include disappearance or abstraction.

B. CONSTRUCTION PROJECT/"LOCATION" GENERAL AGGREGATE

1. For all sums which the insured becomes legally obligated to pay as damages caused by an "occurrence" under **Section I - Coverage A**, and for all medical expenses caused by accidents under **Section I - Coverage C,** which can be attributed:
(i) only to ongoing operations at a single construction project away from premises owned or rented to you or;
(ii) to a single "location" owned or rented to you:
a. A separate Construction Project/"Location" General Aggregate Limit applies to each construction project or covered location, and that limit is equal to the amount of the General Aggregate Limit shown in the Declarations.
b. The Construction Project/"Location" General Aggregate Limit is the most we will pay for the sum of all damages under **Coverage A,** except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard", and for medical expenses under **Coverage C** regardless of the number of:
(1) Insureds;
(2) Claims made or "suits" brought; or
(3) Persons or organizations making claims or bringing "suits".
c. Any payments made under **Section I - Coverage** A for damages or under **Coverage C** for medical expenses shall reduce the Construction Project/"Location" General Aggregate Limit for that construction project or covered location. Such payments shall not reduce the General Aggregate Limit shown in the Declarations nor shall they reduce any other Construction Project/"Location" General Aggregate Limit for any other construction project or covered location.
d. The limits shown in the Declarations for Each Occurrence, Damage To Premises Rented To You and Medical Expense continue to apply. However, instead of being subject to the General Aggregate Limit shown in the Declarations, such limits will be subject to the applicable Construction Project/"Location" General Aggregate Limit.
2. For all sums which the insured becomes legally obligated to pay as damages caused by an "occurrence" under **Section I - Coverage A** . and for all medical expenses caused by accidents under **Section I - Coverage C**, which cannot be attributed only to ongoing operations at a single construction project or only to operations at a single "location":
a. Any payments made under **Coverage A** for damages or under **Coverage C** for medical expenses shall reduce the amount available under the General Aggregate Limit or the Products-Completed Operations Aggregate Limit, whichever is applicable; and
b. Such payments shall not reduce any Construction Project/"Location" General Aggregate Limit.
3. When coverage for liability arising out of the "products-completed operations hazard" is provided, any payments for damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard" will reduce the Products-Completed Operations Aggregate Limit, and not reduce the General Aggregate Limit nor the Construction Project/"Location" General Aggregate Limit.
4. If the applicable construction project has been abandoned, delayed, or abandoned and then restarted, or if the authorized contracting parties deviate from plans, blueprints, designs, specifications or timetables, the project will still be deemed to be the same construction project.
5. For the purposes of this endorsement, the Definitions Section is amended by the addition of the following definition:
"Location" means premises involving the same or connecting lots, or premises whose connection is interrupted only by a street, roadway, waterway or right-of-way of a railroad.
6. The provisions of **Section III - Limits Of Insurance** not otherwise modified by this endorsement shall continue to apply as stipulated.

C. LIMITED COVERAGE - DAMAGE TO WORK PERFORMED BY SUBCONTRACTORS

If endorsement **CG 22 94 Exclusion - Damage To Work Performed By Subcontractors On Your Behalf** amends this policy, the following applies:

1. Paragrapn **1.a.** Insuring Agreement of Section **I** - Coverage **A** - Bodily Injury And Property Damage Liability is amended to include the following:
a. We will pay for "property damage" to "your work" which you become legally obligated to pay, but only if:
(1) The damaged work or the work out of which the damage arises was performed on your behalf by your subcontractor(s) that is not a named insured;
(2) Such "property damage" is included within the "products-completed operations hazard";
(3) Such "property damage" consists of physical injury to tangible property; and.

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(4) Such "property damage" was not a result of wanton, willful or intentional misconduct.

2. Additional Exclusions
   a. The following is added to paragraph **2. Exclusions**, subparagraph **l. Damage To Your Work** of Section **I** - Coverage **A** - Bodily Injury And Property Damage Liability as amended by endorsement **CG 22 94** - Exclusion - Damage To Work Performed By Contractors On Your Behalf when attached to this policy.
   This exclusion does not apply in "property damage" to which paragraph **C. 1.** of this endorsement applies.
   b. The following is added to paragraph **2., Exclusions**, of **Section I - Coverage A. - Bodily Injury and Property Damage Liability**:
   This insurance does not apply to "loss" to property:
   (1) held by the insured for sale or entrusted to the insured for safekeeping;
   (2) owned or occupied by, rented or leased to, or loaned to any insured; or
   (3) arising from errors or mistakes in design plans or specifications committed by or on behalf of the insured.
3. Limits of Insurance
   a. The following is added to **Section III - Limits of Insurance**
   (1) Subject to paragraph **3.** of this section for all payments under the "products-completed operations hazard" for this policy, the most we will pay for "property damage" to "your work", including all resulting loss of use of that property is as follows, unless higher limits of insurance are specified in the Declarations:
   (a) $2,500 for each subcontractor that performed the work out of which the damage arose, subject to
   (b) $10.000 as a result of any one "occurrence", and
   (c) $25.000 aggregate limit for the sum of all occurrences during the policy period.
   (2) The Limits of Insurance of this endorsement apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.
   (3) Subject to the limitations for payment of this coverage under paragraph **3.a.(1)** above, all payments for this coverage combined with all other claims and payments under the "products-completed operations hazard" will be limited to the Products-Completed Operations Aggregate specified in the Declarations.
4. Deductible
   a. We will not be obligated to pay any "loss" until such "loss" exceeds a $250 deductible, or higher deductible amount specified in the Declarations. We will then pay the amount of "loss" in excess of the deductible up to the applicable Limit of Insurance. This deductible amount applies to all "property damage" to "your work", as the result of any one "occurrence", if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.
   b. We may pay any part or the entire deductible amount to effect settlement of any claim or "suit" and, upon notification of the action taken; you shall promptly reimburse us for such part of the deductible amount as has been paid by us.
   c. The terms of this insurance, including those with respect to:
   (1) our right and duty to defend any "suits" seeking those damages: and
   (2) your duties in the event of an "occurrence", claim or suit:
   apply irrespective of the application of the deductible amounts.
5. Excess Insurance
   a. For the purpose of the coverage under paragraph **C.** of this endorsement, paragraph **5. Other Insurance, b. Excess Insurance** of **Section IV - Commercial General Liability Conditions** is amended to include the following:
   (this insurance is excess over:)
   (1) Any other insurance:
   (a) Whether primary, excess, contingent or on any other basis, except when such insurance is written specifically to be excess over this insurance; and
   (b) Provided the insured is covered by such other insurance for "property damage" to which this endorsement applies.

This coverage does not apply if this policy is not amended by **CG 22 94 Exclusion - Damage To Work Performed By Subcontractors On Your Behalf**

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D. ADDITIONAL INSURED - AUTOMATIC STATUS WHEN REQUIRED IN CONSTRUCTION AGREEMENTS

1. The words "you" and "your" as used in this provision refer to the Named Insured shown in the Declarations and any other person or organization qualifying as a Named Insured under the policy to which this endorsement is attached. "You" and "your" do not refer to an additional insured.
2. **Section II - Who Is An Insured** is amended to include any person or organization for whom you are performing operations when you and such person or organization have agreed in a written contract or written agreement, that such person or organization be added as an additional insured on your policy. Such person or organization is an additional insured only with respect to:
   a. Liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:
      (1) Your acts or omissions; or
      (2) The acts or omissions of those acting on your behalf,
      in the performance of your ongoing operations for the additional insured.
      A person or organization's status as an additional insured for ongoing operations ends when your operations for that additional insured are completed.
   b. Liability for "bodily injury" or "property damage" caused in whole or in part, by "your work" at the location designated and described in the written contract or written agreement with that additional insured and included within the "products-completed operations hazard".
3. With respect to the insurance afforded to the additional insured described above, the following additional exclusions or limitations apply:
   a. The insurance applies only to the extent permitted by law;
   b. This insurance does not apply to "bodily injury" or "property damage" caused by your ongoing operations, or "your work" included in the "products-completed operations hazard", unless you are required to provide such coverage for the additional insured by a written contract or written agreement. The contract or agreement must be in effect during this policy period and signed and executed by you prior to the loss for which coverage is sought. Coverage for the additional insured is provided only for the lesser of: **(i)** the period of time required by such contract or agreement; or **(ii)** the end of the policy period.
   c. This insurance does not apply to "bodily injury", "property damage" or "personal and advertising injury" arising out of the rendering of, or the failure to render any professional engineering, architectural or surveying services by you or others on your behalf, including:
      (1) The preparing, approving, failing to prepare approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders, or drawings and specifications; or
      (2) Supervisor or inspection activities performed as part of any related architectural or engineering activities.
      However, professional services do not include services within construction means, methods, techniques, sequences and procedures employed by you in connection with your operations in your capacity as a construction contractor.

   This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage", or the offense which caused the "personal and advertising injury", involved the rendering of or the failure to render any professional architectural, engineering or surveying services.
   d. This insurance does not apply to "bodily injury", "property damage" or "personal and advertising injury" arising out of the sole negligence or willful misconduct of, or defects in design furnished by, the additional insured or its "employees".
   e. This insurance does not apply to "bodily injury" or "property damage":
      (1) Occurring after all work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance, or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or
      (2) Once the location designated and described in the written contract or written agreement has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as part of the same project.

      except to the extent a written contract or written agreement requires coverage to be provided for "bodily injury" or "property damage" included within the "products-completed operations hazard".
   f. With respect to any person or organization added as an additional insured by this endorsement, the definition of "insured contract" under **Section V - Definitions** is amended as follows:
      (1) Paragraph **9.f.** does not apply to "bodily injury" or "property damage" included within the "products-completed operations hazard" unless such contractual assumption of liability is specifically required by a written contract or written agreement.

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(2) Under paragraph **9.f.** any such part of a contract or agreement shall only be considered an "insured contract" to the extent your assumption of the tort liability is permitted by law.

g. The insurance as provided in this endorsement does not apply to "bodily injury", "property damage" or "personal and advertising injury" caused by "your work" for which a consolidated (wrap-up) insurance program has been provided by the prime contractor, project manager or owner of a construction project in which you are involved.

4. With respect to the insurance afforded to the additional insured the following is added to **Section III - Limits of Insurance**:

The most we will pay on behalf of the additional insured is the amount of insurance:

a. Required by the contract or agreement you have entered into with the additional insured; or

b. Available under the applicable Limit of Insurance shown in the Declarations,

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

5. With respect to the coverage provided under this endorsement to an additional insured, the following is added to paragraph **4.a., Other Insurance, of Section IV - Commercial General Liability Conditions**:

However, this insurance is primary to and will not seek contribution from any other insurance available to a person or organization added as an additional insured under the terms of the endorsement provided that

(1) The person or organization is a Named Insured under such other insurance; and

(2) You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to the additional insured.

6. As a condition of coverage, each additional insured must:

a. Give us prompt written notice of any "occurrence" or offense which may result in a claim and prompt written notice of "suit".

b. Immediately forward all legal papers to us, cooperate in the investigation or settlement of the claim or defense against the "suit," and otherwise comply with policy conditions.

c. Tender the defense and indemnity of any claim or "suit" to any other insurer which also insures against a loss we cover under this endorsement. This includes, but is not limited to, any insurer which has issued a policy of insurance in which the additional insured qualifies as an insured under any applicable policy definition. For purposes of this requirement, the term "insures against" refers to any self-insurance and to any insurer which issued a policy of insurance that may provide coverage for the loss, regardless of whether the additional insured has actually requested, demanded, or targeted tender that the insurer provide the additional insured with a defense and/or indemnity under that policy of insurance.

d. Agree to make available any other insurance that the additional insured has for a loss we cover under this endorsement.

E. ADDITIONAL INSURED - AUTOMATIC STATUS WHEN REQUIRED FOR PERMITS

1. The words "you" and "your" as used in this provision refer to the Named Insured shown in the Declarations and any other person or organization qualifying as a Named Insured under the policy to which this endorsement is attached. "You" and "your" do not refer to an additional insured.

2. **Section II - Who Is An Insured** is amended to include any state, governmental agency, subdivision or political subdivision for which you are required to add as an additional insured because of the issuance or existence of a permit, but only with respect to:

a. Liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:

(1) Your acts or omissions; or

(2) The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for which the permit was issued; and

b. Permits:

(1) Currently in effect or becoming effective during the term of this policy; and

(2) Executed prior to the "bodily injury", "property damage," or "personal and advertising injury".

However:

a. The insurance afforded to such additional insured only applies to the extent permitted by law; and

b. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

A person's or organization's status as an additional insured for ongoing operations ends when your operations for which the permit was issued are completed.

3. With respect to the insurance afforded to the additional insured described in **E.2.** above, this insurance does not apply to:

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a. Bodily injury", "property damage" or "personal and advertising injury" arising out of operations performed for the federal government, state or municipality; or

b. "Bodily injury" or "property damage" included within the "products-completed operations hazard".

4. With respect to the insurance afforded to these additional insureds, the following is added to **Section III - Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

a. Required by the contract or agreement; or

b. Available under the applicable Limits of Insurance shown in the Declarations,

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

F. ADDITIONAL INSURED - AUTOMATIC STATUS WHEN REQUIRED IN LEASE AGREEMENTS

1. The words "you" and "your" as used in this provision refer to the Named Insured shown in the Declarations and any other person or organization qualifying as a Named Insured under the policy to which this endorsement is attached. "You" and "your" do not refer to an additional insured.

2. **Section II - Who Is An Insured** is amended to include as an additional insured any person or organization from whom you lease equipment when you and such person or organization have agreed in writing in a contract or agreement that such person or organization be added as an additional insured on your policy. Such person or organization is an insured only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by your maintenance, operation or use of equipment leased to you by such person or organization.

However, the insurance afforded to such additional insured:

a. Only applies to the extent permitted by law; and

b. Will not be broader than that which you are required by the contract or agreement to provided for such additional insured.

A person's or organization's status as an additional insured under this endorsement ends when their contract or agreement with you for such leased equipment ends.

3. With respect to the insurance afforded to these additional insureds, this insurance does not apply to any "occurrence" which takes place after the equipment lease expires.

4. With respect to the insured afforded to these additional insureds, the following is added to **Section III - Limits Of Insurance:**

The most we will pay on behalf of the additional insured is the amount of insurance:

a. Required by the contract or agreement you have entered into with the additional insured; or

b. Available under the applicable Limits of Insurance shown in the Declaration,

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

G. "MOBILE EQUIPMENT" REDEFINED

1. **Section V - DEFINITIONS** is amended as follows:

a. Paragrapn **12.f.(1)(a), (b)**, and **(c)** of the "mobile equipment" definition does not apply to self-propelled vehicles of less than 1,000 pounds gross vehicle weight.

H. ALIENATED PREMISES AMENDMENT

1. Paragraph **2.J.(2),** Exclusions, of Section **I** - Coverage **A.** Bodily Injury and Property Damage Liability is replaced as follows:

(2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises and occurred from hazards that were known by you, or should have reasonably been known by you, at the time the property was transferred or abandoned.;

I. CONTRACT PENALTY REIMBURSEMENT

1. Subject to the provisions of Section **I** - Coverage **A** - Bodily Injury And Property Damage Liability, we will pay up to 50% of the contractual penalties you are required to pay to your customers as a result of a written contract or agreement for failure to timely deliver your product according to the contract terms due to "bodily injury" or "property damage" which arises out of your business operations to which this policy applies.

2. The most we will pay under the coverage is $10,000 in any one policy year.

J. COORDINATING COVERAGE

If the coverage provided by any provision within this endorsement, any other endorsement, form, or policy issued to you by us or any company affiliated with us apply to the same "occurrence", the maximum applicable per occurrence and aggregate limits of insurance available under all the endorsements, forms or policies shall not exceed the highest applicable per occurrence and aggregate limits of insurance under any one endorsement, form, or policy.

This condition does not apply to any coverage or policy issued by us or an affiliated company to apply specifically as excess insurance over the applicable coverage.

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